

PERFORMANCE WORK STATEMENT (PWS)

Chemistry Analyzer
7 April 2026

PART 1 GENERAL INFORMATION

1.0. General: This is a non-personal service(s) contract under which the personnel rendering the service(s) are not subject, either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the Government and its employees.

1.1. Description of Services/Introduction: This is a non-personal service(s) contract to provide Fox Army Health Center, Redstone Arsenal, AL, a Chemistry Analyzer which combines chemistry and immunoassay in a single platform. Services shall include necessary reagents and consumables.

1.2. Background: The Pathology Department at FAHC, Redstone Arsenal, Alabama serves Soldiers, retirees, and family members and has done so for over 30 years. The laboratory intent is to upgrade from the analyzer to sustain the medical needs of the patients and committed to providing the highest quality healthcare in a friendly and professional environment. The equipment will be located in the chemistry section of the laboratory under the management of the Department of Pathology. Funding will be allocated annually subject to the availability of funds.

1.3. Scope: The Contractor shall provide non-personal service(s). The successful offeror shall furnish all equipment, reagents, consumables, controls, and any services i.e., maintenance of furnished equipment to the Department of Pathology, under a Cost-Per-Reportable basis. Under the Cost-Per-Reportable Results arrangement, the Contractor is responsible for providing all equipment, reagents, controls, consumables, and any other parts or services to ensure the laboratory is able to execute the required testing. Contractor shall include delivery, installation, all calibrators/standards, reagents, and quality control materials. This requirement is for a base year beginning 1 August 2026 or date of award through 31 July 2027, and four option years if exercised.

1.4. Objectives:

Contractor shall ensure analyzer can perform the following tests:

General Chemistry		Immunoassay	
A1C	HDL	Ferritin	Cortisol
Alb	Iron	Folate	Estradiol
ALP	K	FT4	Free PSA
ALT	LDL	Testo	Free T3
AST	Microalb	TSH	FSH
Bicarb	Na	Vitamin B12	LH
BUN	Phos	Vitamin D	Progesterone
Ca	T Bil	PSA	Prolactin
Chol	TP	T3 Uptake	Total T4

CK	Trig	Total T3	Cortisol
Cl	U Crea	Ferritin	Estradiol
Crea	U Pro	Folate	Free PSA
D Bil	UA	FT4	Free T3
Gluc	TIBC	Testo	FSH
Amy	RF	TSH	LH
GGT	Ethanol	Vitamin B12	Progesterone
Lip	CRP	Vitamin D	
Mag			

The chemistry and immunoassay analyzers shall be capable of operating in various modes including continuous, random STAT and batch specimen. The analyzers shall be capable of processing various test tubes and sample sizes.

Contractor shall ensure the total equipment footprint when installed in the laboratory shall not impact the functionality/operations of the laboratory. The electrical requirements are 220 VAC and 60 Hz.

Contractor shall ensure Method Validation will be conducted in accordance with method validation protocols established by the Department of Pathology's Quality Management Program (these protocols are in concordance with applicable standards as described by the Clinical Laboratory Standards Institute (CLSI) and/or required by the College of American Pathologists (CAP)).

The vendor shall provide installation, validation testing, onsite and offsite user training and preventive maintenance coverage. The vendor shall provide validation of the analyzers, including normal range verification, demonstration of linearity, reportable range, replication studies, recovery studies and establishment of initial control ranges using control materials. Corrective system maintenance coverage shall include response times, as specified in the Performance Work Statement (PWS). Training shall be provided by the vendor, as specified in the PWS. The system shall bi-directionally interface with the MHS Genesis electronic health record and with the laboratory information system (LIS), as specified in the PWS.

1.5. General Information:

1.5.1. Quality Control (QC) and Quality Assurance (QA): The Contractor shall develop and maintain a QC and QA to ensure services are performed in accordance with **1.5.1.2.** (IAW) this PWS. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The Contractor's QCP is the means by which it assures that the work provided complies with the requirements of the contract.

1.5.1.2. The QC Plan shall include: A description of the inspection system to cover all incidental support and maintenance services listed on the Performance Requirements Summary (PRS) listed in Exhibit A. Description shall include specifics as to the areas to be inspected on both a scheduled and

unscheduled basis, frequency of inspections, and the title and Organizational placement of the inspectors. Additionally, control procedures for any Government provided keys or lock combinations shall be included.

1.5.1.3. A description of the methods to be used for identifying and preventing equipment failure and/or defects.

1.5.1.4. A description of the records to be kept to document inspections and corrective or preventive actions taken. NOTE: The records of inspections shall be kept and made available to the Government throughout the contract performance period and for the period after contract completion until final settlement of any claims, if any, under this contract.

1.5.2. Quality Assurance: For those tasks listed on the PRS (Exhibit A), the COR will follow the methods of surveillance specified in this contract. Government personnel will record surveillance observations, as needed, and provide to the Contractor. The receipt of the observation does not necessarily constitute concurrence with the observation, only acknowledgment that the Contractor has been made aware of the defective performance. Government surveillance may include observations/tasks not listed in the PRS. Such surveillance will be done according to standard inspection procedures or other contract provisions. Any action taken by the Contracting Officer as a result of surveillance will be according to the terms of this contract.

1.5.3. Recognized Holidays: The following provides information on recognized holidays for the purpose of the PWS. If submittal of any documentation (e.g. deliverables, submittals, etc.) deadlines fall on a holiday, the closest workday prior to the holiday will apply as the deadline for submittal.

1.5.3.1. U.S. Holidays: Work shall not be performed on U.S. federally recognized holidays occurring during the normal workweek unless otherwise directed by the Contracting Officer. When a U.S. holiday occurs on a Saturday or a Sunday, the holiday is observed on the preceding Friday or following Monday, respectively.

- New Year's Day - January 1st
- M. L. King Birthday Day - 3rd Monday in January
- Presidents' Day - 3rd Monday in February
- Memorial Day - Last Monday in May
- Juneteenth - June 19th
- Independence Day - July 4th
- Labor Day - 1st Monday in September
- Columbus Day - 2nd Monday in October
- Veteran's Day - November 11th
- Thanksgiving Day - 4th Thursday in November
- Christmas Day - December 25th

1.5.4. Operating Hours: Operation Hours are 7:30 am to 4:00 pm CST, Monday through Friday.

1.5.4.1. Government Facility Office Hours/Operating Orders: The Government facility office hours are 7:30 am to 4:00 pm CST, Monday through Friday except U.S. Holidays identified in paragraph

1.5.3.1 above or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings.

1.5.4.2. Contractor Support Hours: The Contractor shall provide equipment maintenance service/direct customer service and support, 24 hours/7 days a week, to include hotline telephone service, and direct connect remote instrument diagnostic capability to assist operators in correcting equipment operation problems. The Contractor shall maintain an adequate workforce at all times, for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce is essential.

1.5.5. Training Holidays: The Army has historically granted military personnel training holidays as compensation for time that they spent in field training. These are typically combined with regular holiday leave schedules (for example, Christmas half days or days on day off schedules). Training holidays may affect access to military operated facilities. If scheduled work or access to facilities is required, coordination with occupants will be necessary or the work in affected facilities shall be rescheduled after the training holiday. However, announced training holidays or exodus of military personnel may provide the Contractor with an opportunity for unrestricted access to facilities and areas. The Contractor shall take full advantage of such opportunities by planning maintenance or actions that are better accomplished when such areas are vacant.

1.5.6. Place of Performance: The work to be performed under this contract will be performed:

Fox Army Health Center
Department of Pathology
4100 Goss Rd SW
Redstone Arsenal, AL 35809

1.5.6.1. Exact installation location at the primary location shall be coordinated by the Contractor with the point of contacts listed below:

Department of Pathology
FAHC Laboratory Tel: (256) 955-8888 ext. 1039

1.6. Security Requirements: The following information is provided on security related matters.

1.6.1. Security Program: N/A

1.6.2. Installation Access: Access to U.S. installations, buildings and controlled areas is limited to personnel who meet security criteria and are authorized. Failure to submit required information/data and obtain required documentation or clearances will be grounds for denying access to U.S. installations, buildings and controlled areas. The Contractor shall ensure that any subcontractors used in performance of this contract complies with these requirements and that all employees, of both the Contractor and any subcontractor utilized by the Contractor, are made aware of and comply with these requirements.

The Contractor shall be aware of and comply with the requirements associated with Installation Access Control. The Government is not liable for any costs associated with performance delays due solely to a firm's failure to comply with Installation Access Control System (IACS) processing requirements. The Contractor shall return installation passes to the issuing IACS office when the contract is completed or when a Contractor employee no longer requires access.

1.6.2.1. Installation Pass: The contractor shall ensure each employee obtains the required identification items as applicable for access of contractor personnel, privately owned vehicles and contractor owned/leased vehicles. The contractor personnel and any of their approved subcontractors entering any military installation shall abide by all security regulations and shall be subject to security checks enacted by the Department of Defense. The log must at a minimum contain the following information Name, Company, and vehicle information. The log shall be updated as employees are added or removed.

1.6.3. Individual Termination or Expiration of Employment: The contractor shall notify the FM and COR by the end of the business day in which the release or termination occurs. The contractor shall obtain from employees upon the ending of their employment all base identification and access badging, keys and associated materials by the end of the next business day.

1.6.4. Contract Termination or Cancellation: Upon termination or cancellation of this contract, the Contractor shall collect all outstanding installation access passes and return them to the issuing office within five (5) business days.

1.6.5. Common Access Cards (CAC) and CAC Log: Contract personnel will be issued a common access card (CAC) only if duties involve one of the following: (1) both physical access to a DoD facility and access to DoD information systems or networks; (2) remote access to a DoD information system or network using DoD-approved remote access procedures; or (3) physical access to multiple DoD facilities or multiple non-DoD federally controlled facilities on behalf of the DoD on a recurring basis for a period of 6 months or more. Before CAC issuance, contract personnel must have, at a minimum, a favorably adjudicated Tier 1 investigation or an equivalent or higher investigation in accordance with applicable Army regulations and Homeland Security Presidential Directive-12 (HSPD-12). At the discretion of the Requiring Activity (RA), an initial CAC may be issued based on a favorable review of a fingerprint check and a successfully scheduled Tier 1 investigation with the National Background Investigations Bureau. The RA provides contract personnel with additional information and forms to initiate the CAC issuance process, and/or to initiate background investigations, when required. Contract personnel shall complete these processes within established timelines to avoid delays.

1.6.6. Physical Security: The Contractor shall safeguard all Government equipment, information, and property provided for Contractor use Personnel or any representative of the contractor entering Redstone Arsenal shall abide by all security regulations and shall be subject to security checks. Contractor and all associated sub-contractor employees shall comply with applicable installation / facility access and local security policies and procedures (provided by Government representative as needed). The contractor shall also provide all information required to meet installation access requirements if required including background checks to be accomplished by installation Provost Marshall Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.204-9 (Personal Identity Verification of Contractor Personnel) as directed

by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.

1.6.6.1. Ensure personnel report to the Administrative Officer of the Day (AOD) or Plans, Training, Mobilization and Security (PTMS) located within the health center sign in and obtain a temporary vendor security badge PRIOR to commencing all on-site visits, preventive maintenance service, or repairs to equipment in the laboratory under this contract if necessary.

1.6.6.2. Ensure that any requirement to remove, exchange, or add contractor's equipment during the ordering period of this contract is coordinated through the Contract Officer's Representative (COR) and must also include the site OIC/NCOIC, Chief, Equipment Management Branch (EMB) and the Property Book Officer (PBO).

1.7. Post Award Conference/Periodic Progress Meetings: The Contractor shall attend any post award conference convened by the contracting activity or contract administration office in accordance with FAR Subpart 42.5. The Contracting Officer, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the Contracting Officer will apprise the Contractor of how the Government views the Contractor's performance and the Contractor shall apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.7.1. The Contractor shall attend, participate in, and furnish input to scheduled and unscheduled meetings, conferences, and briefings that relate to the functions and services herein as required by the Government to provide effective communication and impart necessary information. The Contract Manager or designated representative shall attend meetings as requested by the Government. Meeting attendees shall at times include Contractor managerial, supervisory, and other personnel knowledgeable of the subject matter. Meetings may start or end outside of regular duty hours.

1.8. Contracting Officer's Representative (COR): Refer to Part 2 of this PWS for the definition of a COR. As determined by the Contracting Officer, a COR will be appointed and identified by letter of designation, a copy of which will be provided to the Contractor by the Contracting Officer. The designation letter states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates, or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is not authorized to obligate the Government. If the work is not written in the contract, the COR is not authorized to request new work. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract, perform inspections necessary in connection with contract performance, maintain written and oral communications with the Contractor concerning technical aspects of the contract, issue written interpretations of technical requirements, including Government drawings, designs, specifications, monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies, coordinate availability of Government property, and coordinate site entry of Contractor personnel.

1.9. Key Personnel: The Contractor shall provide a Program/Contract Manager who shall be responsible for the performance of the work. The name of this person and an Alternate Program/Contract Manager, who shall act for the Contractor when the Program/Contract Manager is absent, along with a Curriculum Vitae (CV) for each of these individuals, shall be provided in writing to the Contracting Officer no later than five (5) days after contract award. The Contract Manager and Alternate Contract Manager shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The Contract Manager or Alternate Contract Manager shall be available between Monday thru Friday 0730 to 1600 CST. Qualifications for all key personnel are listed below:

a. Contract Manager and Alternate Contract Manager: Must speak English and have a full comprehensive understanding of Clinical Laboratory operations and understanding of the analyzer. Must be fully trained to operate the analyzer by vendor.

b. Quality Control Manager: Must speak English and have a full comprehensive understanding of Clinical Laboratory operations and understanding of the analyzer. Must be fully trained to operate the analyzer by vendor.

c. Systems Administrator: Must speak English and have a full comprehensive understanding of Clinical Laboratory operations and understanding of the analyzer. Must be fully trained to operate the analyzer by vendor.

d. Special Qualifications: Must speak English and have a full comprehensive understanding of Clinical Laboratory operations and understanding of the analyzer. Must be fully trained to operate the analyzer by vendor.

1.9.1. Contractor Identification Badges: Contractor personnel shall be easily identifiable through the display of badges IAW Contractor Identification (AE Reg. 27-715). (For services at Child, Youth, and School Services where children are present, recommend personnel wear identification when children are present.

1.10. Data Rights: The Government has unlimited rights to all documents and materials produced under this contract. All documents and materials, to include the source codes of software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership and copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the Contractor without written permission from the Contracting Officer. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.11. Non-Disclosure Requirements: Performance under this contract may require the Contractor to access data and information proprietary to a government agency, another Government Contractor, or of such nature that its dissemination or use other than as specified in this work statement would be adverse to the interests of the Government or others. The Contractor and Contractor personnel shall not divulge, or release data or information developed, or obtained under performance of this PWS, except to authorized Government personnel or upon written approval of the Contracting Officer. The Contractor shall not use, disclose, or reproduce proprietary data, which bears a restrictive legend, other than as

specified in this PWS. All documentation showing individual names or other personal information shall be controlled and protected under the provisions of the Privacy Act of 1974, Public Law 93-579, 5 United States Code (U.S.C.) Section 552a.

1.12. Protection of Government and Contract Information: Per Public Use Notice of Limitations stated by Defense imagery Management operations Center and contained at www.dimoc.mil/resources/limitations/. The Contractor shall not cite any information (e.g., contract information, pictures, locations, etc.) obtained through this contract on any hard copy or digital marketing tools to include its company website.

1.13. Organizational Conflict of Interest (OCI): Contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent OCI as defined in FAR Subpart 9.5. The Contractor's OCI Mitigation Plan will be determined to be acceptable solely at the discretion of the Contracting Officer. In the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.14. Required Training: The following provides information on training requirements.

1.14.1. Anti-Terrorism (AT) Level I Training: All contractor employees, including subcontractor employees, requiring access Army installations, facilities, and controlled access areas shall complete AT Level 1 training within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever is applicable. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR, or to the Contracting Officer, if a COR is not assigned, within 10 days after completion of training by all employees and subcontractor personnel. AT Level 1 Awareness Training is available at the following website: <https://atlevel1.dtic.mil/at>.

1.14.2. OPSEC Training:

This provision/contract text is for contractor employees with an area of performance within an Army controlled installation, facility or area. All contractor employees, to include subcontractor employees, requiring access Army installations, facilities and controlled access areas shall complete AT Level I awareness training annually IAW current contractor personnel training requirements. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after completion of training by all employees and subcontractor personnel. AT level I awareness training is available at the following website:

<https://jkodirect.jten.mil/Atlas2/faces/page/login/Login.seam>.

1.14.3. iWATCH Training: This standard language is for contractor employees with an area of performance within an Army controlled installation, facility or area. The contractor and all associated sub-contractors shall brief all employees on the local iWATCH program (training standards provided by

the requiring activity ATO). This local developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance with the results reported to the COR NLT 30 calendar days after contract award.

PART 2

DEFINITIONS & ACRONYMS

2.0. Definitions and Acronyms

2.1 Definitions: Although not inclusive of every term used within this PWS, the following provides a list of definitions used throughout this PWS and commonly used in the acquisition field.

Contracting Officer – means a person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

Contracting Officer's Representative (COR) – As defined in DFARS 202.101, means an individual designated and authorized in writing by the Contracting Officer to perform specific technical or administrative functions. DoD Instruction (DoDI) 5000.72, Part II Definitions states the following when defining a COR: “Defined in subpart 202.101 of Reference (f). Any individual delegated responsibilities pursuant to subpart 1.602-2 of Reference (e), regardless of local terminology, must be certified in accordance with this instruction. For example, local terminology can be COR, Contracting Officer’s technical representative, technical point of contact, technical representative, alternate COR, administrative COR, assistant COR, line-item manager, task order manager, quality assurance personnel, quality assurance evaluator, or COR management.” In addition, Army Regulation 70-13, Chapter 2, paragraph 2-2g, states, in part, the following when providing other surveillance support personnel to assist the COR when needed, “...These other surveillance support personnel may serve as on-site representatives of the COR in performance of actual contract surveillance if they meet all COR requirements and have been appointed by the Contracting Officer as alternate CORs.”

Contractor – means a supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

Contractor-acquired Property - means property acquired, fabricated, or otherwise provided by the Contractor for performing a contract and to which the Government has title.

Day – means, unless otherwise specified, a calendar day.

Defective Service – means a service output that does not meet the standard of performance associated with the Performance Work Statement.

Deliverable – means anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

Government-furnished Property – As reflected in FAR 52.245-1, Government-furnished Property “means property in the possession of, or directly acquired by, the Government and subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract

Government Property - means all property owned or leased by the Government. Government property includes both Government-furnished and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

Property Administrator - means an authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a Contractor.

High Level Objective (HLO) – means a key overarching result-based objective for a project necessary to achieve the project’s vision. HLOs are similar to Level 2 in a Work Breakdown Structure. Each HLO may contain several statements to flesh out the areas necessary to meet the objective.

Physical Security – means that part of security concerned with physical measures designed to safeguard personnel; to prevent unauthorized access to equipment, installations, material, and documents; and to safeguard against espionage, sabotage, damage, and theft.

Quality Assurance – (or Government contract quality assurance) means the various functions, including, inspection, performed by the Government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

Quality Assurance Surveillance Plan (QASP) – means the key Government-developed surveillance process document and is applied to Performance-Based Service Contracting (PBSC). The QASP is used for managing Contractor performance assessment by ensuring that systematic quality assurance methods validate that Contractor quality control efforts are timely, effective, and are delivering the results specified in the contract or task order. The QASP directly corresponds to the performance objectives and standards (i.e., quality, quantity, timeliness) specified in the Performance Work Statement (PWS). It provides specific details on how the Government will survey, observe, test, sample, evaluate, and document Contractor performance results to determine if the Contractor has met the required standards for each objective in the PWS. The QASP, with very few if any exceptions, is an internal to Government document.

Quality Control – means all necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

Statement – means the specific results-based activities required to satisfy HLOs. A statement contains a result, the context of the statement, and the required action(s). Statements focus on “what” is to be accomplished; however, they are not prescriptive in describing “how” the outcome is to be achieved. Each HLO may have several statements to flesh out the areas necessary to meet the objective. Statements are similar to Level 3 in a Work Breakdown Structure.

Subcontractor – means one that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

Workday - The number of hours per day the Contractor provides services in accordance with the contract.

Work Week - Monday through Friday, unless otherwise specified.

2.2 Acronyms: Although not inclusive of every term used within this PWS, or that may be included in an acquisition, the following provides a list of acronyms commonly used in the acquisition field.

ACOR	Alternate Contracting Officer's Representative
AE	Army in Europe
AFARS	Army Federal Acquisition Regulation Supplement
AHA	Activity Hazard Analysis
AOD	Administrative Officer of the Day
AOR	Area of Responsibility
AR	Army Regulation
AT	Anti-terrorism
ATCTS	Army Training Certification Tracking System
CAC	Common Access Card
CCE	Contracting Center of Excellence
CDRH	Center for Devices and Radiological Health
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer's Representative
COTS	Commercial-Off-the-Shelf
CPRR	Cost Per Reportable Result
DA	Department of the Army
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DoD	Department of Defense
EMB	Equipment Management Branch
FAHC	Fox Army Health Center
FAR	Federal Acquisition Regulation
FDA	Food and Drug Administration
FPCON	Force Protection Condition
FSE	Field Service Engineer
GFP	Government Furnished Property
HQDA	Headquarters Department of the Army
HLO	High Level Objective
HIPAA	Health Insurance Portability and Accountability Act of 1996
IA	Information Awareness
IAC	Installation Access Control
IACO	Installation Access Control Office
ID	Identification
IGCE	Independent Government Cost Estimate
iRAPT	Invoicing, Receipt, Acceptance and Property Transfer
IT	Information Technology

KO	Contracting Officer
MTF	Military Treatment Facility
NFPA	National Fire Protection Association
NCOIC	Non-Commissioned Officer in Charge
NLT	No Later Than
OCI	Organizational Conflict of Interest
ODC	Other Direct Costs
OEM	Original Equipment Manufacturers
OIC	Officer in Charge
OPSEC	Operations Security
OSHA	Occupational Safety and Health Administration
PA	Property Administrator
PBO	Property Book Officer
PII	Personally Identifiable Information
PIPO	Phase In/Phase Out
PMS	Preventive Maintenance Services
POC	Point of Contact
PRS	Performance Requirements Summary
PTMS	Plans, Training, Mobilization and Security
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
RA	Requiring Activity
RCO	Regional Contracting Office
SDS	Safety Data Sheets
SIGE	Safety and Health Protection Plan
TE	Technical Exhibit
UOM	Unit of Measure
UPS	Uninterrupted Power Supply
USAG	United States Army Garrison
WAWF	Wide Area Workflow

PART 3
GOVERNMENT PROPERTY (GP) AND SERVICES

3.0. Government Property and Services: N/A

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4.0. Contractor Furnished Property and Services

4.1 General: The Contractor shall furnish and deliver one new automated chemistry analyzer; including auxiliary equipment including the following:

- Reagents and Consumables
- Onboard Computer System with Printer
- Uninterruptible Power Supply
- Operator's Manual
- Maintenance Manual

4.2. Materials: The contractor shall furnish all materials required to perform maintenance, repairs, or service. Any costs associated with travel, lodging or meals to conduct services or preventive maintenance will be at the cost of the contractor.

4.2.1. Completion of Service. Upon completion of services, a written service report will be provided to the Biomedical Maintenance / Clinical Engineering Manager and lab supervisor. The service report shall be completely filled out, provide detailed information regarding the cause of equipment malfunction and corrective action taken, to include the time required to complete the work, price of labor (hourly rate), and a list of parts replaced with a price for each part. In the event all information is not available to contractor's representative when services are performed, the initial service report shall include all information stated above except for price. Contractor shall provide the balance of the required information in writing to the Department of Pathology as soon as possible.

4.2.2. Contractor shall provide new and/or refurbished parts that are certified and documented to meet Original Equipment Manufacturers (OEM) specifications on all manufacturers' mandatory modifications and apply recalls by FDA.

4.2.3. Contractor shall provide new or updated user manuals when changes are made at no additional cost.

4.2.4. Contractor shall furnish all applicable MSDS for reagents, equipment and supplies utilized under this contract at no additional cost.

4.2.5. Contractor shall deliver 1 automated chemistry with immunoassay analyzer and Components with the following test capabilities:

General Chemistry		Immunoassay	
A1C	HDL	Ferritin	Cortisol
Alb	Iron	Folate	Estradiol
ALP	K	FT4	Free PSA
ALT	LDL	Testo	Free T3
AST	Microalb	TSH	FSH

Bicarb	Na	Vitamin B12	LH
BUN	Phos	Vitamin D	Progesterone
Ca	T Bil	PSA	Prolactin
Chol	TP	T3 Uptake	Total T4
CK	Trig	Total T3	Cortisol
Cl	U Crea	Ferritin	Estradiol
Crea	U Pro	Folate	Free PSA
D Bil	UA	FT4	Free T3
Gluc	TIBC	Testo	FSH
Amy	RF	TSH	LH
GGT	Ethanol	Vitamin B12	Progesterone
Lip	CRP	Vitamin D	
Mag			

4.2.6. Type-II reagent grade Water source (if required) and waste must have the ability to be self-contained. The Contractor must also provide the water system (if required), maintenance, per contract, and supplies with all the costs to be included in the proposal.

4.3. Vehicles and Equipment: N/A

PART 5 SPECIFIC TASKS

5.1. Basic Services: The Contractor shall provide Fox Army Health Clinic laboratory with new FDA approved chemistry analyzers on a cost per reportable result (CPRR) basis with reagents, supplies, maintenance, parts as required in order to maintain the system in optimal operating condition, consumables and installation and removal. The equipment use, equipment service, calibrators, and reagents are to be included in the cost and proposal. This contract will include telephonic technical support available 24/7, and in-house service (8 x 5) as needed for all analyzers on contract. The systems must be compatible with the current laboratory information system (LIS) which is Cerner Millennium/Military Health System-Genesis (MHS-G) and must include all normal ranges, reference intervals and units of measurement for each assay. The Contractor must provide a type-one reagent grade water system that the Contractor installs and maintains, if applicable/required. Service contract covering the term of the agreement is the requirement of the contractor, if required.

5.2. Tasks: Tasks consist of the following:

a) To perform maintenance, repairs, or service to maintain contractor owned equipment. Any costs associated with travel, lodging or meals to conduct services or preventive maintenance shall be at the cost of the contractor.

b) Upon completion of maintenance services provide a written service report.

c) Contractor shall provide new and/or refurbished parts that are certified and documented to meet Original Equipment Manufacturers (OEM) specifications on all manufacturers' mandatory modifications and apply recalls by FDA.

d) Contractor shall furnish all applicable MSDS for reagents, equipment and supplies utilized under this contract at no additional cost.

e) Contractor shall perform installation validation prior to contract initiation including:

- Precision studies
- Accuracy studies
- Method comparison

f) The Contractor shall provide with its quotation, a transitioning plan for the complete transition to including installation and training of personnel, transition of all testing materials, reagents and supplies, etc., performance of all comparisons and validations. This transition shall be completed no later than 60 days after date of award. This timeline is based on a reasonable attempt of the Contractor to complete all of the necessary implementation requirements within the stated timeframe.

g) Contractor shall provide training in the operation of the analyzer including:

- Up to 10 operator level training during installation
- Two (2) key operator training including travel and lodging, available for scheduling within six (6) months of installation.

h) Contractor shall provide routine testing should require minimal technician intervention; examples include minimal pre-treatment requirements, bar coded reading of primary sample tubes and reagents.

i) Contractor shall provide on-site technical support for analyzer installation and maintain a fully operational status.

j) Contractor shall ensure proper packaging and shipping of reagents, supplies, and equipment according to manufacturer specifications.

k) Contractor shall provide reagent updates for any reagents in writing within 5 business days and ensure continuity of services and availability of reagents during reagent revision when required.

l) Contractor shall ensure reagents meet quality control guidelines set forth by manufacturer.

m) Contractor shall provide all software upgrades at no additional cost.

n) Contractor shall notify the laboratory within 24 hours of manufacturer's recalls for all reagents or equipment.

o) Contractor shall perform all on-site scheduled service as specified by the manufacturer's published maintenance manual as necessary to keep analyzer in good condition including lubrications, cleaning (other than those performed at the operator's level), calibrations, and diagnostics, during the lease period at no additional cost.

p) A technical assistance or support center shall be available by telephone hotline 24/7 days/week with a maximum call back response time of 1 hour with on-site service provided, not to exceed 24 hours following determination that site service is required. The technical assistance center shall be staffed with personnel who are fluent in English without the use of an interpreter.

q) Contractor shall ensure analyzer can perform the tests mentioned in line **4.2.5**.

r) Contractor shall ensure the total equipment footprint when installed in the laboratory shall not impact the functionality/operations of the laboratory. The electrical requirements are 220 VAC and 60 Hz. The contractor will provide a UPS for each analyzer, if required, capable to complete testing in progress as well as protection against electrical fluctuations.

s) Contractor shall ensure computer software is included, integrated on-board operational manual support to include management of quality control data, training, maintenance, and troubleshoot tips. Also must provide a written operational manual.

t) Contractor shall ensure Method Validation will be conducted in accordance with method validation protocols established by the Department of Pathology's Quality Management Program (these protocols are in concordance with applicable standards as described by the Clinical Laboratory Standards Institute (CLSI) and/or required by the College of American Pathologists (CAP)).

u) The system will come equipped to perform continuous, random and statistical analysis; capable of real time or (on-line) Quality Control (QC). Provide QC assessment with comparison to a

peer group on a daily, weekly, and monthly basis, to include QC Lot's, means, ranges, SD, and CVs%. Changing or modifying existing QC parameters can be performed during instrument operation (e.g. "on-the-fly").

- v) The system must have positive patient identification via on-board barcode scanner.

5.3. Service Contract Reporting

5.3.1. System for Award Management (SAM) Service Contract Report (SCR): Reserved

PART 6

APPLICABLE PUBLICATIONS

6. Applicable Publications (Current Editions): The following publications, manuals, regulations, etc. are mentioned in this PWS and are listed below.

6.1. Laboratory Automation: Specimen Container/Specimen Carrier; Approved Standard (AUTO01-A)

Laboratory Automation: Bar Codes for Specimen Container Identification; Approved Standard (AUTO02-A2) Laboratory Automation: Communications With Automated Clinical

Laboratory Systems, Instruments, Devices, and Information Systems; Approved Standard—Second Edition (AUTO03-A2)

Laboratory Automation: Systems Operational Requirements, Characteristics, and Information Elements; Approved Standard (AUTO04-A)

Laboratory Automation: Data Content for Specimen Identification; Approved Standard (AUTO07-A) Remote Access to Clinical Laboratory Diagnostic Devices via the Internet; Approved Standard (AUTO09-A) Autoverification of Clinical Laboratory Test Results; Approved Guideline (AUTO10-A)

IT Security of In Vitro Diagnostic Instruments and Software Systems; Approved Standard (AUTO11-A)

Defining, Establishing, and Verifying Reference Intervals in the Clinical Laboratory; Approved Guideline—Third Edition (C28-A3)

Evaluation of Precision Performance of Quantitative Measurement Methods; Approved Guideline-Second Edition (EP05-A2)

Evaluation of the Linearity of Quantitative Measurement Procedures: A Statistical Approach; Approved Guideline (EP06-A)

Interference Testing in Clinical Chemistry; Approved Guideline—Second Edition (EP07-A2)

Method Comparison and Bias Estimation Using Patient Samples; Approved Guideline—Second Edition (EP09-A2) Preliminary Evaluation of Quantitative Clinical Laboratory Measurement Procedures; Approved Guideline-Third Edition (EP10-A3)

Laboratory Statistics — Standard Deviation; A Report (EP13-R)

Evaluation of Matrix Effects; Approved Guideline—Second Edition (EP14-A2)

User Verification of Performance for Precision and Trueness; Approved Guideline-Second Edition (EP15-A2) Protocols for Determination of Limits of Detection and Limits of Quantitation;

Approved Guideline (EP17-A) Risk Management Techniques to Identify and Control Laboratory Error Sources; Approved Guideline—Second Edition (EP18-A2)

Estimation of Total Analytical Error for Clinical Laboratory Methods; Approved Guideline (EP21-A) Determination of Serum Iron, Total Iron-Binding Capacity and Percent Transferrin Saturation; Approved Standard (H17-A)

Specification for Low-Level Protocol to Transfer Messages Between Clinical Laboratory Instruments and Computer Systems; Approved Standard—Second Edition (LIS01-A2)
Specification for Transferring Information Between Clinical Laboratory Instruments and Information Systems; Approved Standard—Second Edition (LIS02-A2)

Standard Guide for Selection of a Clinical Laboratory Information Management System (LIS03-A) Standard Practice for Reporting Reliability of Clinical Laboratory Information Systems (LIS06-A) Standard Specification for Use of Bar Codes on Specimen Tube in the Clinical Laboratory (LIS07-A)

Standard Guide for Functional Requirements of Clinical Laboratory Information Management Systems (LIS08-A) Standard Guide for Coordination of Clinical Laboratory Services within the Electronic Health Record Environment and Networked Architecture (LIS09-A)

PART 7
PERSONALLY IDENTIFIABLE INFORMATION, PROTECTED HEALTH INFORMATION
AND
FEDERAL INFORMATION REQUIREMENTS

7.1. General Requirements Overview - Personally Identifiable Information (PII), Protected Health Information (PHI) and Federal Information Laws. This Section addresses the Contractor's requirements under The Privacy Act of 1974 (Privacy Act), The Freedom of Information Act (FOIA), and The Health Insurance Portability and Accountability Act (HIPAA) as set forth in applicable statutes, implementing regulations and Department of Defense (DoD) issuances. In general, the Contractor shall comply with the specific requirements set forth in this Section and elsewhere in this Contract. The Contractor shall also comply with requirements relating to records management as described herein.

7.1.1. This Contract incorporates by reference the federal regulations and DoD issuances referred to in this Section. If any authority is amended or replaced, the changed requirement is effective when it is incorporated under contract change procedures. Where a federal regulation and any DoD issuance govern the same subject matter, the Contractor shall first follow the more specific DoD implementation unless the DoD issuance does not address or is unclear on that matter. DoD issuances are available at <http://www.dtic.mil/whs/directives>.

7.1.2. For purposes of this Section, the following definitions apply.

- DoD Privacy Act Issuances means the DoD issuances implementing the Privacy Act, which are DoDI 5400.11, DoD Privacy and Civil Liberties Programs, January 29, 2019, and DoDI 5400.11- R, Department of Defense Privacy Program, May 14, 2007.

7.1.3. HIPAA Rules means, collectively, the HIPAA Privacy, Security, Breach and Enforcement Rules, issued by the U.S. Department of Health and Human Services (HHS) and codified at 45 Code of Federal Regulations (CFR) Part 160 and Part 164, Subpart E (Privacy), Subpart C (Security), Subpart D (Breach) and Part 160, Subparts C-E (Enforcement), as amended. Additional HIPAA rules regarding electronic transactions and code sets (45 CFR Part 162) are not addressed in this Section and are not included in the term HIPAA Rules.

7.1.4. DoD HIPAA Issuances means the DoD issuances implementing the HIPAA Rules in the DoD Military Health System (MHS). These issuances are DoDM 6025.18, "Implementation of the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule in DoD Health Care Programs," March 13, 2019, DoDI 6025.18, Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule Compliance in DoD Health Care Programs, March 13, 2019, and DoDI 8580.02, Security of Individually Identifiable Health Information in DoD Health Care Programs, August. 12, 2015. Defense Health Agency (DHA) Privacy Office is the DHA Privacy and Civil Liberties Office. The DHA Privacy Office Chief is the HIPAA Privacy and Security Officer for DHA.

7.2. Records Management: When creating and maintaining official government records, the Contractor shall comply with all federal requirements established by 44 United States Code (U.S.C.) Chapters 21, 29, 31, 33 and 35, and by 36 CFR, Chapter XII, Subchapter B – Records Management. The Contractor shall also comply with DoD Administrative Instruction No. 15 (DoD AI-15), "OSD Records and Information Management Program" (May 3, 2013) and Records Management requirements outlined in the current

TRICARE Operations Manual (TOM).

7.3. Freedom of Information Act (FOIA): The Contractor shall comply with the following procedures if it receives a FOIA request and immediately contact the DHA FOIA Officer for evaluation/action:

7.3.1. The Contractor shall inform beneficiaries that DHA FOIA procedures require a written request preferably sent via the National FOIA Portal at: www.FOIA.gov. However, requesters may also submit requests via email at DHA.FOIA@mail.mil; or via postal delivery addressed to the DHA Freedom of Information Service Center, 7700 Arlington Boulevard, Suite 5101, Falls Church, Virginia 22042-5101. All FOIA requests shall describe the desired record as completely as possible to facilitate its retrieval from files and to reduce search fees which may be borne by the requestor. Contract and/or Modification numbers must be included in all FOIA requests seeking DHA procurement records. Although the administrative time limit to grant or deny a request (ten working days after receipt) does not begin until the request is received by DHA, the Contractor shall act as quickly as possible and respond to DHA within ten working days.

7.3.2. In response to requests received by the Contractor for the release of information, unclassified information, documents, and forms which were previously provided to the public as part of routine services shall continue to be made available in accordance with previously established criteria. All other requests from the public for release of DHA records and, specifically, all requests that reference FOIA shall be immediately forwarded to DHA, ATTENTION: Freedom of Information Officer, for appropriate action. Direct contact, including interim replies, between TRICARE contractors and such requestors is not authorized. The Contractor shall process requests by individuals for access to records about themselves in accordance with directions from the DHA Freedom of Information Service Center. If such a requestor specifically makes the request under the Privacy Act or does not make clear whether the request is made under FOIA or the Privacy Act, the Contractor shall process the request in accordance with directions from the DHA Privacy Office. If requestor specifically seeks PHI under HIPAA, the Contractor shall follow paragraph 8.1.6, relating to individual rights of access to PHI.

7.4. Systems of Records: In order to meet the requirements of the Privacy Act and the DoD Privacy Act Issuances, the Contractor shall identify to the DHA Contracting Officer (CO) systems of records that are or will be maintained or operated for DHA where records of PII collected from individuals are maintained and specifically retrieved using a personal identifier. Upon identification of such systems to the CO, and prior to the lawful operation of such systems, the Contractor shall coordinate with the DHA Privacy Office to complete systems of records notices (SORNs) for submission and publication in the Federal Register as coordinated by the Defense Privacy, Civil Liberties, and Transparency Division, and as required by the DoD Privacy Act Issuances. Following proper SORN publication and Government confirmation of Contractor authority to operate the applicable system(s), the Contractor shall also comply with the additional systems of records and SORN guidance, in coordination with the DHA Privacy Office, regarding periodic system review, amendments, alterations, or deletions set forth by the DoD Privacy Act Issuances, Office of Management and Budget (OMB) Memorandum 99-05, Attachment B, OMB Circular A-130, and Privacy Act of 1974 requirements applicable to contractors operating systems of records on behalf of federal agencies. The Contractor shall promptly advise the DHA Privacy Office of changes in systems of records or their use that may require a change in the SORN.

7.5. Privacy Impact Assessment (PIA): If DHA data is stored on a Contractor owned system, a PIA is required from the Contractor.

7.6. Data Sharing Agreement (DSA)

7.6.1. Applies if contract requirements involve the use of DHA data (including PII/PHI, a limited data set, or de-identified data): The Contractor shall consult with the DHA Privacy Office to determine if the Contractor must obtain a DSA or Data Use Agreement (DUA), when DHA data will be accessed, used, disclosed or stored, to perform the requirements of this Contract.

7.6.1.2. The Contractor shall comply with the permitted uses established in a DSA/DUA to prevent the unauthorized use and/or disclosure of any PII/PHI, in accordance with the HIPAA Rules and DoD HIPAA Issuances. Likewise, the Contractor shall comply with the DoD Privacy Act Issuances.

7.6.1.3. Prior to using any data involving PHI for research purposes, as defined by HIPAA, the Contractor must gain approval from the DHA Privacy Board. Thus, the Contractor shall comply with DHA Privacy Board requests for additional documentation.

7.6.1.4. To begin the DSA request process, the Contractor shall submit a DSA Application (DSAA) to the DHA Privacy Office. Upon approval, the requestor shall enter into one of the following agreements, depending on the data involved:

- DSA for De-Identified Data
- DSA for PHI
- DSA for PII Without PHI
- DUA for Limited Data Set

7.6.1.5. DSAs executed for contract support will expire after 1 year or at the end of the contract option year, whichever comes first. If the contractual use of DHA data will continue after the DSA expiration date, the Contractor shall submit a DSA Renewal Request template to the Privacy Office; however, if the DSA will not be renewed, the Contractor shall close the DSA by providing a Certificate of Data Disposition (CDD) to the DHA Privacy Office.

7.6.2. Applies if contract requirements may include human subject research: This Contract incorporates by reference the Protection of Human Subject Research clause in the Defense Federal Acquisition Regulation Supplement (DFARS) at 48 CFR 252.235-7004. A separate DFARS provision, 48 CFR 235.072(e), requires that the clause be incorporated in contracts that include or may include research involving human subjects in accordance with 32 CFR 219, DoDI 3216.02, and 10 U.S.C. 980, including research that meets exemption criteria under 32 CFR 219.101(b), the clause applies to solicitations and contracts awarded by any DoD component, regardless of mission or funding Program Element Code. Thus, in the event a contractor participates in a study or demonstration project or other activity that involves human subject research, then the contractor shall comply with Protection of Human Subject Research clause. COs may not determine whether an activity is exempt from human subject research requirements. If contractor activity appears to involve human subject research, then the contractor shall consult the DHA Privacy Office, which may contact the Research Regulatory Oversight Office in the Office of the Under Secretary of Defense for Personnel and Readiness (OUSD(P&R)).

7.7. Privacy Act and HIPAA Training: The Contractor shall ensure that its entire staff, including subcontractors and consultants that perform work on this Contract receive training on the Privacy Act, HIPAA, and the federal regulations on confidentiality of substance use disorder patient records, 42 CFR Part 2. Refer to FAR 52.224-3 regarding specific requirements for Privacy Training appropriate to the Contractor's scope of involvement with DHA's PHI and its regulatory responsibilities as either a Covered Entity, or Business Associate.

7.7.1. The Contractor shall ensure all employees and subcontractors supply a certificate of all training completion to the Contracting Officer's Representative (COR) within 30 days of being assigned and on an annual basis based on the trainee's birth month thereafter.

7.8. HIPAA Business Associate Provisions

7.8.1. Business Associate – General Provisions: The Contractor meets the definition of Business Associate, and DHA meets the definition of a covered entity under the HIPAA Rules and the DoD HIPAA Issuances. Therefore, a Business Associate Agreement (BAA) between the Contractor and DHA is required to comply with the HIPAA Rules and the DoD HIPAA Issuances. The contractor shall use the DoD BAA, which shall be used by all organizational entities within the DoD, referred to collectively as the "DoD Components", located at, https://www.health.mil/Military-Health-Topics/Privacy-and-Civil-Liberties/Privacy_Contract-Language/HIPAA-Compliant-Business-Associate-Agreement-for_the-MHS. b.i. and (3)b.ii

7.9. Breach Response: This paragraph 9 is inoperative, and all references herein to "paragraph 9" shall be deemed to refer to the TOM breach responses provisions, if the contract incorporates the TOM by reference

7.9.1. Definitions Related to Breach response

7.9.2. Breach means a loss of control, compromise, unauthorized disclosure, unauthorized acquisition, or any similar occurrence where: (1) a person other than an authorized user accesses or potentially accesses PII; or (2) an authorized user accesses or potentially accesses PII for another than authorized purpose. The foregoing definition is based on the definition of breach in DoDM 6025.18. Breaches are classified as either possible or confirmed (see the following two definitions) and as either cyber or non-cyber (i.e., involving either electronic PII/PHI or paper/oral PII/PHI).

7.9.3. A possible breach is an incident where the possibility of unauthorized access is suspected (or should be suspected) and has not been ruled out. For example, if a laptop containing PII/PHI is lost, and the contractor does not initially know whether or not the PII/PHI was encrypted, then the incident must initially be classified as a possible breach, because it is impossible to rule out the possibility of unauthorized access to the PII/PHI. In contrast, that possibility can be ruled out immediately, and a possible breach has not occurred, when misdirected postal mail is returned unopened in its original packaging. However, if the intended recipient informs the contractor that an expected package has not been received, then a possible breach exists until and unless the unopened package is returned to the contractor. In determining whether unauthorized access should be suspected, the contractor shall consider at least the following factors:

- How the event was discovered
- Did the information stay within the covered entity's control
- Was the information actually accessed/viewed
- Ability to ensure containment (e.g., recovered, destroyed, or deleted)

7.9.4. A confirmed breach is an incident in which it is known that unauthorized access could occur. For example, if a laptop containing PII/PHI is lost and the contractor knows that the PII/PHI is unencrypted, then the contractor should classify and report the incident as a confirmed breach, because unauthorized access could occur due to the lack of encryption (the contractor knows this even without knowing whether or not unauthorized access to the PII/PHI has actually occurred). If the laptop is subsequently recovered and forensic investigation reveals that files containing PII/PHI were never accessed, then the possibility of unauthorized access can be ruled out, and the contractor should re-classify the incident as a non-breach incident.

7.9.5. A HHS breach is an incident that satisfies the definition of breach in Section 164.402 of the HIPAA Breach Rule. The text of the HHS definition states:

- Breach means the acquisition, access, use, or disclosure of PHI in a manner not permitted under subpart E of this part [i.e. the HIPAA Privacy Rule] which compromises the security or privacy of the PHI.

7.10. HHS breach excludes: Any unintentional acquisition, access, or use of PHI by a workforce member or person acting under the authority of a DoD covered entity or a business associate, if such acquisition, access, or use was made in good faith and within the scope of authority and does not result in further use or disclosure in a manner not permitted under the HIPAA Privacy Rule.

7.10.1. Any inadvertent disclosure by a person who is authorized to access PHI at a DoD covered entity or business associate to another person authorized to access PHI at the same DoD covered entity or business associate, or organized health care arrangement in which the DoD covered entity participates, and the information received as a result of such disclosure is not further used or disclosed in a manner not permitted the HIPAA Privacy Rule.

7.10.2. A disclosure of PHI where a DoD covered entity or business associate has a good faith belief that an unauthorized person to whom the disclosure was made would not reasonably have been able to retain such information.

7.10.3. Except as provided in this definition, an acquisition, access, use, or disclosure of PHI in a manner not permitted under this issuance is presumed to be a breach unless the DoD covered entity or business associate, as applicable, demonstrates that there is a low probability that the PHI has been compromised based on a risk assessment of at least the following factors:

- The nature and extent of the PHI involved, including the types of identifiers and the likelihood of reidentification.
- The unauthorized person who used the PHI or to whom the disclosure was made; whether the

PHI was actually acquired or viewed; and the extent to which the risk to the PHI has been mitigated.

7.10.4. A cybersecurity incident is a violation or imminent threat of violation of computer security policies, acceptable use policies, or standard security practices, with respect to electronic PII/PHI. A cybersecurity incident may or may not involve a breach of PII/PHI. For example, a malware infection would be a possible breach if it could cause unauthorized access to PII/PHI. However, if the malware only affects data integrity or availability (not confidentiality), then a non-breach cybersecurity incident has occurred.

7.11. General

7.11.1. The breach response requirements shall be followed for all unauthorized use or disclosure of information regardless of whether the information is PHI or solely PII.

7.11.2. Because DoD defines “breach” to include possible (suspected), as well as actual (confirmed) breaches, the Contractor shall implement these breach response requirements immediately upon the Contractor’s discovery of a possible breach. These procedures focus on the first two steps (breach identification and reporting) of a comprehensive breach response program, but also require addressing the remaining steps: containment, mitigation (which includes individual notification), eradication, recovery, and follow-up.

7.11.3. The contractor shall establish internal processes for carrying out the procedures set forth below. These processes shall assign responsibility for investigating, classifying, reporting and otherwise responding to breaches and cybersecurity incidents. The contractor should consult with the DHA Privacy Office where guidance is needed, such as when the contractor is uncertain whether a discovered breach is the contractor’s responsibility (e.g., if the contractor discovers a breach not caused by the contractor), or how the contractor is to classify an incident (breach vs. non-breach, confirmed vs. possible, cyber vs. non-cyber). Under no circumstances will a contractor delay reporting a confirmed or possible breach to the DHA Privacy Office beyond the 24-hour deadline. In conjunction with its initial investigation, the contractor shall immediately take steps to minimize any impact from the occurrence, proceed with further investigation of any relevant details (such as root causes, vulnerabilities exploited), and initiate further breach response steps.

7.11.4. In the event of a cybersecurity incident not involving a PII/PHI breach, the contractor shall follow applicable DoD cybersecurity and NIST requirements, which include United States Computer Emergency Readiness Team (US-CERT) reporting (see paragraph 9.3). If at any point a contractor finds that a cybersecurity incident involves a PII/PHI breach (possible or confirmed), the contractor shall immediately initiate the reporting procedures set forth below. The contractor shall also continue to follow any required cybersecurity incident response procedures and other applicable DoD cybersecurity requirements.

7.11.5. Contractors shall require subcontractors who discover a possible breach or cybersecurity incident to initiate the incident response requirements herein by reporting the incident to the contractor immediately after discovery. The time of that report to the contractor shall trigger the contractor’s DHA Privacy Office reporting deadline (24 hours) under paragraph 9.3.2. If a cybersecurity incident is

involved, the contractor's deadline for US-CERT reporting (1 hour) runs from the time the incident is confirmed. The contractor shall require the subcontractor to cooperate as necessary to meet these deadlines, maintain records, and otherwise enable the contractor to complete the breach response requirements herein. Alternatively, the contractor and subcontractor may agree that the subcontractor shall report directly to US-CERT and the DHA Privacy Office, and that the subcontractor shall be responsible for completing the response process, provided that such agreement requires the subcontractor to inform the contractor of the incident and the subsequent response actions.

7.11.6. Contractors shall maintain records of all breach and cybersecurity incident investigations, regardless of the outcome. Investigations identifying unauthorized disclosures must be logged for HIPAA and Privacy Act disclosure accounting purposes, whether or not individual notification is required under the HIPAA Breach Rule.

7.11.7. Contractors, when acting as HIPAA-covered entities, and not as business associates, are not subject to the breach response requirements herein. However, such contractors are subject to both the HIPAA Breach Rule (applicable to them in their capacity as covered entities) and DoD cybersecurity requirements (applicable to them in their capacity as DoD contractors).

7.12. Reporting Provisions

7.12.1. Immediately upon discovery of a possible or confirmed breach or cybersecurity incident, the contractor shall initiate an investigation. If the incident involves electronic PII/PHI, and if the investigation finds a confirmed breach or cybersecurity incident, the contractor shall report it, within 1 hour of confirmation, to the US-CERT Incident Reporting System at <https://forms.us-cert.gov/report/>, as required by the Department of Homeland Security (DHS).

7.12.2. Note: DHS no longer requires US-CERT reporting of non-cyber breaches or unconfirmed electronic breaches. However, DHS permits US-CERT reporting of unconfirmed cyber related incidents on a voluntary basis. Thus, if a contractor is uncertain whether a possible cyber-related incident should be treated as confirmed and thus reportable, the contractor may voluntarily report the incident.

7.12.3. Before submission to US-CERT, the contractor shall save a copy of the on-line report. After submitting the report, the contractor shall record the US-CERT incident reporting number, which shall be included in the initial report to the DHA Privacy Office as described in paragraph 7.12.4.

7.12.4. Note: Regardless of whether or not an incident is confirmed as a breach, the contractor must also investigate whether or not the incident impacts data integrity or availability of PII/PHI. If such impact is confirmed, then the incident is reportable to US-CERT as a cybersecurity incident. For guidance on investigating the impact on data integrity and availability, refer to DoD cybersecurity and NIST guidance.

7.12.5. The contractor shall provide any updates to the initial US-CERT report by email to soc@us-cert.gov, with the Reporting Number in the subject line. The contractor shall provide a copy of the initial or updated US-CERT report to the DHA Privacy Office if requested. Contractor questions about US-CERT reporting shall be directed to the DHA Privacy Office, not the US-CERT office.

7.12.6. In addition to US-CERT reporting, the contractor shall report to the DHA Privacy Office by submitting the form specified below within 24 hours of discovery of a breach (possible or confirmed), unless the breach falls within a category that the Privacy Office has determined to be not reportable. This 24-hour period runs from the time of discovery, unlike the 1-hour US- CERT reporting period, which runs from the time a cybersecurity incident is confirmed. Thus, depending on the time period needed to confirm, the report to the DHA Privacy Office may be due either before or after the US-CERT report.

7.12.7. The breach report form required within the 24-hour deadline shall be sent by e-mail to: DHA.PrivacyOfficer@mail.mil. The contractor shall also e-mail the report to the CO, the COR and its usual point of contact at the applicable Program Office. Encryption is not required, because reports and notices shall not contain PII/PHI. If electronic mail is not available, telephone notification is also acceptable (at 703-275-6363), but all notifications and reports delivered telephonically must be confirmed in writing as soon as technically feasible.

7.12.8. Contractors shall prepare the breach reports required within the 24-hour deadline by completing the Breach Reporting Department of Defense Form DD 2959 (Breach of PII Report), available at documents/DD/forms/dd/dd2959.pdf. For non-cyber incidents without a US-CERT number, the contractor shall assign an internal tracking number and include that number in Box 1.e of the DD Form 2959. The contractor shall coordinate with the DHA Privacy Office for subsequent action, such as beneficiary notification, and mitigation. The contractor must promptly update the DD Form 2959 as new information becomes available.

7.12.9. When a Breach Report Form initially submitted is incomplete or incorrect due to unavailable information, or when significant developments require an update, the Contractor shall submit a revised form or forms promptly after the new information becomes available, stating the updated status and previous report date(s) and showing any revisions or additions in red text. The Contractor shall provide updates to the same parties as required for the initial Breach Report Form.

7.13. Individual Notification Provisions

7.13.1. If the DHA Privacy Office determines that individual notification is required, the Contractor shall provide written notification to beneficiaries affected by the breach as soon as possible, but no later than 10 working days after the breach is discovered and the identities and addresses of the beneficiaries are ascertained. The 10-day period begins when the Contractor is able to determine the identities (including addresses) of the beneficiaries whose records were impacted. If notification cannot be accomplished within 10 working days, the contractor shall notify the DHA Privacy Office.

7.13.2. The Contractor's proposed notification to be issued to the affected beneficiaries shall be submitted to the DHA Privacy Office for approval. The notification to beneficiaries shall include, at a minimum, the following:

- Specific data elements
- Basic facts and circumstances
- Recommended precautions the beneficiary can take
- Federal Trade Commission (FTC) identity theft hotline information
- Any mitigation support services offered, such as credit monitoring

7.13.3. Contractors shall ensure any envelope containing written notifications to affected individuals are clearly labeled to alert the recipient to the importance of its contents, e.g., “Data Breach Information Enclosed,” and that the envelope is marked with the identity of the Contractor and/or subcontractor organization that suffered the breach.

7.13.4. If media notice is required, the contractor will submit a proposed notice and suggested media outlets for the DHA Privacy Office review and approval (which will include coordination with the DHA Communications Division).

7.14.5. In the event the Contractor is uncertain on how to apply the above requirements, the Contractor shall consult with the CO, who will consult with the Privacy Office as appropriate when determinations on applying the above requirements are needed.

7.14.6. The Contractor shall, at no cost to the government, bear any costs associated with a breach of PII/PHI that the Contractor has caused or is otherwise responsible for addressing.

PART 8
ATTACHMENT AND TECHNICAL EXHIBIT LISTING

8.0. Attachment and Technical Exhibit List

8.1. Technical Exhibit A – Performance Requirements Summary

8.2. Technical Exhibit B – Deliverables Schedule

8.3. Attachment 1 – Estimated Workload Data

TECHNICAL EXHIBIT A
Performance Requirements Summary (PRS)

PERFORMANCE OBJECTIVE	STANDARD	PERFORMANCE THRESHOLD ACCEPTABLE QUALITY LEVELS (AQLs)	METHOD OF SURVEILLANCE
Contractor shall supply a full-service contract PWS para. 5.1	Contract shall include preventive maintenance and repairs by an OEM certified field service technician	100%	100% Inspection
Preventive Maintenance PWS para. 5.2 a	Routine preventive maintenance shall be performed Monday thru Friday between the hours of 7:30am - 3:30pm	95%	Periodic Inspection
Technical phone support PWS 1.5.4.3.	Contractor shall supply 24/7 phone support. Phone support number:	95%	Periodic Inspection
Contractor shall supply repair parts and preventive maintenance kits. PWS para. 4.2.	Parts and Kits will be at no additional cost to the Government and OEM new or OEM refurbished parts.	95%	Random Sampling
Software updates and upgrades PWS para. 5.2c	Contractor shall provide new and/or refurbished parts that are certified and documented to meet Original Equipment Manufacturers (OEM) specifications on all manufacturers' mandatory modifications and apply recalls by FDA.	100%	Periodic Inspection
Service Reports. PWS para. 4.2.1.	Contractor shall provide a service report at the conclusion of each service.	98%	Periodic Inspection

Invoicing and payments supplement to PWS	Contractor shall submit a 2-n-1 invoice to the Procurement Integrated Enterprise Environment (PIEE)	100%	100% Inspection
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TECHNICAL EXHIBIT B
Deliverable Schedule

Deliverable	Frequency	# of Copies	Medium/Format	Submit To
Reagents and Consumables (4.1)	As needed by usage and workload	2 copies needed	Paper copy as well as electronic via email	One to COR and one for supply techs

**ATTACHMENT 1
ESTIMATED WORKLOAD DATA**

General Chemistry				Immunoassay			
TEST	QUANTITY	TEST	QUANTITY	TEST	QUANTITY	TEST	QUANTITY
A1C	6559	HDL	6994	Ferritin	916	Cortisol	60
Alb	7820	Iron	953	Folate	287	Estradiol	89
ALP	7768	K	8352	FT4	1218	Free PSA	18
ALT	7780	LDL	6992	Testo	558	Free T3	176
AST	7783	Microalb	2366	TSH	4693	FSH	203
Bicarb	8338	Na	8338	Vitamin B12	3005	LH	193
BUN	8342	Phos	100	Vitamin D	3123	Progesterone	44
Ca	7932	T Bil	7779	PSA	2068	Prolactin	89
Chol	6993	TP	7765	T3 Uptake	44	Total T4	89
CK	98	Trig	7000	Total T3	159		
Cl	8338	U Crea	2096				
Crea	8362	U Pro	150				
D Bil	391	UA	244				
Gluc	8345	TIBC	920				
Amy	37	RF	152				
GGT	67	Ethanol	91				
Lip	62	CRP	281				
Mag	218						